

In order to sufficiently allege a cause of action for financial abuse under Welfare and Institutions Code § 15610.30, the plaintiff(s) must meet the definition of “elder or dependent adult”.

“Dependent adult” means a person...between the ages of 18 and 64 years who...has physical or mental limitations that restrict his or her ability to carry out normal activities or to protect his or her rights.” Welf. & Inst. Code § 15610.23(a). Pursuant to Welfare and Institutions Code § 15610.27, “elder” means any person residing in the state who is 65 years of age or older. Welf. & Inst. Code § 15610.27.

Here, Plaintiffs’ FAC alleges, “Plaintiff Randy Ryan Agno was and is over the age of fifty-eight (58), and Plaintiff Amy Beth Agno is likewise of advanced age as defined under California’s Elder Financial Abuse Statutes.” In opposition to the demurrer, Plaintiffs do not argue that they meet the definition of elder, but rather argue they are bringing the claim on behalf of Judith and Kenneth Johnson, Carol Siefkin, and Patricia Murphy, who are not parties to the instant action. Plaintiffs also assert Plaintiff Randy Agno qualifies as a dependent adult. Defendants argue Plaintiffs do not have standing to assert a claim for elder abuse on behalf of non-parties. The Court agrees with Defendants.

Code of Civil Procedure § 367 states, “[e]very action must be prosecuted in the name of the real party in interest...” Code Civ. Proc. § 367. Further, Code of Civil Procedure § 369 codifies the only exceptions to that rule, which are a personal representative, a trustee of an express trust, a person with whom or in whose name a contract is made for the benefit of another, or any other person expressly authorized by statute. Code Civ. Proc. § 369(a)(1)-(4). None of the exceptions apply in the case at bar. Therefore, Defendants’ demurrer as to the third cause of action is sustained.

Leave to amend is granted “where there is a reasonable possibility of successful amendment.” *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348. In opposition, Plaintiffs allege Plaintiff Randy Agno qualifies under the statute as a “dependent adult.” Therefore, Plaintiff has sufficiently provided a reasonable possibility that the defects in the pleading can be cured by amendment. Leave to amend is granted.

Because the motion to strike is dependent on the demurrer being sustained without leave to amend, the Court denies the motion to strike without prejudice.

8. CU0001840 Richard A Perdomo Canales v. Best Western International, Inc., et al.

The unopposed motion of Defendant Best Western International, Inc. to compel responses to Form Interrogatories (Set One) is granted. Plaintiff Richard A. Perdomo Canales is ordered to provide further verified responses, without objections, to Form Interrogatories Nos. 12.2, 12.3, and 14.1 within thirty (30) days of notice of entry of this order.

Meet and Confer

Per the Declaration of Defendant’s counsel, efforts were made to meet and confer prior to this filing. Mezger Decl., ¶¶ 8-9, Exhs. 5-6. It appears Plaintiff’s counsel responded to these efforts by email noting Defendant’s meet and confer efforts were insufficient because they did not

identify the specific deficiencies alleged and relief sought. Mezger Decl., ¶ 10, Exh. 7. However, Plaintiff failed to offer an extension to Defendant's motion deadline and has not filed an opposition to the motion. Thus, while the Court admonishes Defendant for not engaging in meet and confer efforts prior to the eve of its motion deadline, Plaintiff's emailed position is unpersuasive given Plaintiff had the opportunity to raise this argument in an opposition to this motion and failed to do so.

Legal Standard

A motion to compel further responses lies where the responses to the interrogatories are deemed improper by the propounding party, i.e., meritless or overly general objections, evasive or incomplete answers. Code Civ. Proc., § 2030.300. A motion to compel further responses is addressed to the sound discretion of the trial court; the court considers the opposing party's objections; the relationship of the information sought to the issues framed in the pleadings; the likelihood that disclosure will be of practical benefit to the party seeking discovery; and the burden or expense likely to be encountered by the responding party in furnishing the information sought. *Columbia Broadcasting System, Inc. v. Superior Court* (1968) 263 Cal.App.2d 12, 19. Where any objection is valid, it is an abuse of discretion to fully grant a motion to compel. *Deaile v. General Telephone Co. of California* (1974) 40 Cal.App.3d 841, 850.

Pursuant to Code of Civil Procedure section 2030.220, subdivision (a), "[e]ach answer in response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits." Code Civ. Proc., §2030.220(a). Similarly, "[w]here the question is specific and explicit, an answer which supplies only a portion of the information sought is wholly insufficient. Likewise, a party may not provide deftly worded conclusionary answers designed to evade a series of explicit questions." *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783. Moreover, "[i]f only partial answers can be supplied, the answers should reveal all information then available to the party." *Id.* at 782. "If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control." *Id.*

Analysis

The Court notes, additionally, that Plaintiff failed to support any objections to the identified interrogatories. "[I]f a timely motion to compel has been filed, the burden is on responding party to justify any objection." *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255, citing *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221.

Regarding Interrogatory Nos. 12.2 and 12.3, the objection challenged is the assertion of attorney-client privilege and attorney-client work product. Failing to respond to discovery within the 30-day time limit waives objections to the discovery, including claims of privilege and "work product" protection. Code Civ. Proc. § 2030.290(a), 2031.300(a); see *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906. Here, Plaintiff served untimely verified responses including objections. Motion, 5:9; Mezger Decl., ¶ 7. Therefore, all objections are waived.

While Plaintiff asserted an objection based on undue burden in response to Interrogatory No. 14.1, Plaintiff offers no evidence which establishes undue burden or a resulting injustice. *West Superior Court* (1961) 56 Cal.2d 407, 417. “The objection based upon burden must be sustained by evidence showing the quantum of work required, while to support an objection of oppression there must be some showing either of an intent to create an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought.” *West Pico Furniture Co. of Los Angeles v. Superior Court* (1961) 56 Cal.2d 407, 417. “The objection of burden is valid only when that burden is demonstrated to result in injustice.” *Id.* at 418. Additionally, the untimeliness of Plaintiff’s verified responses results in all objections being waived.

Based on all of the above, further verified responses, without objections, are ordered as to Form Interrogatory Nos. 12.2, 12.3, and 14.1.

Sanctions

No sanctions were sought by Defendant, yet, statutorily, sanctions must be ordered in favor of a party who prevails on a discovery motion. It could be Defendant is waiving this right. Based on the lack of request and lack of information that would allow the Court to fashion an appropriate sanction coupled with the Notice of Non-opposition filed by Plaintiff, the Court declines to order sanctions at this time reserving jurisdiction for a period of fifteen (15) days should counsel for Defendant file a declaration re sanctions and get the matter back on calendar.

9. CU0002187 MA Construction et al v. Li, Jingwen et al

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendants via some approved method after the Notice of Rejection was served on December 16, 2025. Absent good cause being shown, the Court intends to set the matter for dismissal pursuant to CCP section 583.420.

10. CU0002287 Kimberly Faggianelli et al vs. Michael Gardner et al

No appearances required. On the Court’s own motion, the OSC as to Plaintiffs is DISMISSED. Plaintiffs have now filed a proof of service evidencing service of the summons and complaint on both named defendants, and, in fact, Defendants have filed their Answer. The case management conference date remains as set.